

Advisory Notice to Policyholders
Supplemental Spousal Liability Coverage – New York

Insured's Name: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Effective Date: 10-09-2025

New York State law requires that upon written request of an insured, and upon payment of the premium, an insurer issuing or delivering a policy that satisfies the requirements of Article 6 of the New York Vehicle and Traffic Law shall provide Supplemental Spousal Liability Insurance coverage.

Supplemental spousal liability insurance provides bodily injury liability coverage under a motor vehicle insurance policy to cover the liability of an insured spouse because of the death of or injury to his or her spouse, even where the injured spouse must prove the culpable conduct of the insured spouse.

This coverage is included within the policy's bodily injury liability limits and does not increase the amount of those limits. For example:

Insured's bodily injury policy coverage limit: \$100,000/\$300,000 Insured's
bodily injury damage claim paid to spouse: \$75,000

Insured's bodily injury policy coverage limit available to all other claimants subject to a maximum
of \$100,000 per person: \$225,000

This example assumes the spouse and other claimants involved in the accident have a right to sue the insured for economic loss or for non-economic loss (i.e., pain and suffering) sustained as a result of a "serious injury" as defined in Section 5102 (d) of the Insurance Law. It must also have been shown that there was negligence on the part of the insured.

If you elect to add SSL Coverage as of today's date, the additional premium for SSL coverage is \$126.00. If you do not elect to purchase this coverage and do not remit the additional premium, SSL coverage is not included in your motor vehicle insurance policy.

THIS NOTICE DOES NOT PROVIDE COVERAGE NOR DOES THIS NOTICE REPLACE ANY PROVISIONS OF YOUR POLICY. YOU SHOULD READ YOUR POLICY AND REVIEW YOUR DECLARATIONS PAGE FOR COMPLETE INFORMATION ON THE COVERAGES YOU ARE PROVIDED WITH. IF THERE IS ANY CONFLICT BETWEEN THE POLICY AND THIS NOTICE, THE PROVISIONS OF THE POLICY SHALL PREVAIL.

RENEWAL

DATE PREPARED: 09/04/25

FS-20(9/76)

NEW YORK STATE INSURANCE IDENTIFICATION CARD

204 MERCHANTS MUTUAL INSURANCE CO.

CAPI068871

Name & Address of Insurer

Policy Number

MERCHANTS INSURANCE GROUP
250 MAIN STREET BUFFALO, NY 1420210/09/202510/09/2026

Effective Date

Expiration Date

12:01 a.m.

12:01 a.m.

An authorized NEW YORK insurer has issued an
Owner's Policy of Liability Insurance complying with
Article 6 (Motor Vehicle Financial Security Act) of the
NEW YORK Vehicle and Traffic Law to:

(Not acceptable to obtain registration after 45 days
from effective date.)

Applicable with respect to the following Motor Vehicle:

THE;NIGHT;STONE
MASON;INC
4523 STATE ROUTE 9
WARRENSBURG,NY 128854711

2002HA/MA

Year

Make

16HTS10112P027439

Vehicle Identification Number



SEE IMPORTANT MESSAGE ON REVERSE SIDE

MU-0781 (07/01)

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The name of the registrant and the name of the insured must coincide.

REPLACEMENT VEHICLE NOTATION: DMV WILL ONLY PROCESS A VEHICLE CHANGE (RE-REGISTRATION) USING THE REPLACED VEHICLE'S CURRENT REGISTRATION.

FAX: Scanable Bar Code

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4523 STATE ROUTE 9
WARRENSBURG,NY 128854711

2011FORD

Year

Make

1FDRF3H63BEA66124

Vehicle Identification Number



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4523 STATE ROUTE 9
WARRENSBURG,NY 1288547112022FORD

Year

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1FTER4FH5NLD13163

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2008FORD

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1FTSX31Y88EB42119

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4523 STATE ROUTE 9
WARRENSBURG,NY 1288547112007PJ/TR

Year

Make

4P5D6122471092275

Vehicle Identification Number



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**COMMERCIAL LINES POLICY
COMMON POLICY DECLARATIONS**

Date Prepared: 09/04/2025

**MERCHANTS MUTUAL INSURANCE COMPANY
Buffalo, New York**

Policy Number: CAPI068871

Transaction Type: Renewal Certificate

Previous Policy Number: CAPI068871

LIST BILL

Named Insured and Mailing Address:

Your Agent: 85336/WSBC9/005

**THE NIGHT STONE MASON INC
4523 STATE ROUTE 9
WARRENSBURG, NY 12885-4711**

**MARSHALL & STERLING INC.
110 MAIN STREET
POUGHKEEPSIE, NY 12601
(518)384-1100**

(If applicable, see last page of declarations for complete Named Insured)

Policy Period: From **10/09/2025** to **10/09/2026** at 12:01 a.m. Standard Time at your mailing address shown above.

Form of Business: CORPORATION

Business Description: MASON

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

COMMERCIAL PROPERTY COVERAGE PART	\$	
COMMERCIAL GENERAL LIABILITY COVERAGE PART	\$	
COMMERCIAL CRIME COVERAGE PART	\$	
COMMERCIAL INLAND MARINE COVERAGE PART	\$	
BUSINESS AUTO COVERAGE PART	\$	4,397.00
TOTAL POLICY PREMIUM:	\$	4,397.00

FORMS AND ENDORSEMENTS ATTACHED AT INCEPTION APPLYING TO THIS COVERAGE PART AND MADE PART OF THIS POLICY AT TIME OF ISSUE

Authorized Representative:

MU 7653 (0717)

THESE DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART DECLARATIONS, COVERAGE PART FORM(S) AND FORMS AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBERED POLICY.

Insured Copy



COMMERCIAL LINES POLICY
COMMERCIAL AUTOMOBILE COVERAGE PART DECLARATIONS
MERCHANTS MUTUAL INSURANCE COMPANY

Buffalo, New York

Named Insured: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Period: 10/09/2025 to 10/09/2026

ITEM TWO - SCHEDULE OF COVERAGES & COVERED AUTOS

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those 'autos'. 'Autos' are shown as covered 'autos' for a particular coverage by the entry of one or more of the symbols from the 'Covered Autos' section of the Business Auto Coverage Form next to the name of the coverage.

COVERAGES	SYMBOLS	LIMITS	PREMIUM
LIABILITY	01	\$1,000,000	\$ 2,919.00
PERSONAL INJURY PROTECTION ** (OR EQUIVALENT NO FAULT COVERAGE)	07	SEE SCHED. OF AUTOS-MU7251	\$ 129.00
ADDITIONAL PIP ** (OR EQUIVALENT ADDED NO FAULT COVERAGE)	07	SEE SCHED. OF AUTOS- MU7251	\$ Included
OPTIONAL BASIC ECONOMIC LOSS COVERAGE **	07	SEE SCHED. OF AUTOS- MU7251	\$ Included
AGGREGATE NO FAULT BENEFITS AVAILABLE	07	\$ 125,000	\$ Included
AUTO MEDICAL PAYMENTS	07	\$ 5,000	\$ 6.00
SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS (SUM) *	07	\$1,000,000 BI	\$ 99.00
PHYSICAL DAMAGE			
COMPREHENSIVE COVERAGE	07	SEE SCHED. OF AUTOS-MU7251	\$ 387.00
COLLISION COVERAGE	07	SEE SCHED. OF AUTOS-MU7251	\$ 627.00
OPTIONAL COVERAGES AND ENDORSEMENTS			\$ 200.00
NEW YORK MOTOR VEHICLE LAW ENFORCEMENT FEE			\$ 30.00
ESTIMATED TOTAL PREMIUM			\$ 4,397.00

SUBJECT TO AUDIT: NO

* The maximum amount payable under **SUM** coverage shall be the policy's **SUM** limits reduced and thus offset by motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident, as specified in the **SUM** endorsement.

** See MU7251 regarding Maximum Monthly Work Loss, Other Necessary Expenses (per day) and Death Benefit.

ITEM THREE - SCHEDULE OF COVERED AUTOS YOU OWN

SEE SCHEDULE OF AUTOS AND RELATED COVERAGES/DISCOUNTS - MU 72 51

ITEM FOUR - SCHEDULE OF HIRED OR BORROWED COVERED AUTO COVERAGE AND PREMIUMS

LIABILITY COVERAGE - COST OF HIRE RATING BASIS FOR AUTOS NOT USED IN YOUR MOTOR CARRIER OPERATIONS (OTHER THAN MOBILE OR FARM EQUIPMENT)

STATE	LIABILITY COVERAGE	ESTIMATED ANNUAL COST OF HIRE	PREMIUM
NY	Excess Coverage	If Any	\$ 43.00
Total Premium			\$ 43.00



COMMERCIAL LINES POLICY
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For 'autos' NOT used in your motor carrier operations, cost of hire means the total amount you incur for the hire of 'autos' you don't own (not including 'autos' you borrow or rent from your partners or 'employees' or their family members). Cost of hire does not include charges for services performed by motor carriers of property or passengers.

HIRED AUTO PHYSICAL DAMAGE COVERAGE - NOT COVERED

ITEM FIVE - SCHEDULE FOR NON-OWNERSHIP LIABILITY

STATE - NY

NAMED INSURED'S BUSINESS	RATING BASIS	NUMBER		PREMIUM
Other than Auto Service Operations, Partnerships or LLCs	Number of Employees	3	\$	289.00
Total Premium			\$	289.00

ITEM SIX - SCHEDULE FOR GROSS RECEIPTS OR MILEAGE BASIS - NOT COVERED

DRIVERS LIST

Name	DOB	License Number	License State
JOSE D HERNANDEZ	07/05/1966	3708	NY

OPTIONAL COVERAGES AND ENDORSEMENTS

COMMERCIAL AUTOMOBILE BROAD FORM ENDORSEMENT - MU 83 89 PREMIUM \$ 200.00

LOSS PAYEE(s)

FORD MOTOR CREDIT
PO BOX 30201
COLLEGE STATION, TX 77842
Applicable to Auto 006

FORMS AND ENDORSEMENTS ATTACHED AT INCEPTION APPLYING TO THIS COVERAGE PART AND MADE PART OF THIS POLICY AT TIME OF ISSUE.

* CA0001	(1120)	BUSINESS AUTO COVERAGE FORM
CA0112	(0622)	NEW YORK CHANGES IN BUSINESS AUTO/TRUCKERS COVERAGE FORM
CA0175	(0187)	QUICK REFERENCE COMML AUTO COV PART BUS AUTO COV FORM
CA0225	(0620)	NEW YORK CHANGES - CANCELLATION
* CA0421	(1120)	FULL SAFETY GLASS COVERAGE
CA0514	(1118)	NEW YORK TRANSPORTATION NETWORK SERVICES EXCLUSION
CA2232	(1118)	NEW YORK MANDATORY PERSONAL INJURY PROTECTION ENDORSEMENT
CA2233	(1118)	ADDITIONAL PERSONAL INJURY PROTECTION (NEW YORK)
CA2260	(0492)	NEW YORK OPTIONAL BASIC ECONOMIC LOSS COVERAGE
* CA2345	(1120)	PUBLIC OR LIVERY PASSENGER CONVEYANCE EXCLUSION
CA3107	(1118)	NEW YORK SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS END
CA9903	(1013)	AUTO MEDICAL PAYMENTS COVERAGE

MU 72 50 06 98



COMMERCIAL LINES POLICY
COMMERCIAL AUTOMOBILE COVERAGE PART DECLARATIONS
MERCHANTS MUTUAL INSURANCE COMPANY

Buffalo, New York

Named Insured: THE NIGHT STONE MASON INC

Policy Number: CAPI068871

Policy Period: 10/09/2025 to 10/09/2026

CA9944	(1013)	LOSS PAYABLE CLAUSE
IL0017	(1198)	COMMON POLICY CONDITIONS
IL0183	(0808)	NEW YORK CHANGES - FRAUD
IL0185	(0808)	NEW YORK CHANGES - CALCULATION OF PREMIUM
* MSIU05	(1199)	FRAUD TIP LINE
* MU0781	(0701)	NEW YORK INSURANCE IDENTIFICATION CARD
MU2098	(0407)	NY NOTICE TO POLICYHOLDERS - ANTI-THEFT CREDIT
* MU7250	(0698)	COMMERCIAL AUTO DECLARATIONS
* MU7251	(0822)	SCHEDULE OF VEHICLES
* MU7332	(0618)	COMMERCIAL AUTOMOBILE EXPLANATION OF SUM COVERAGE
MU7370	(0717)	COMM AUTO POLICY JACKET
* MU7653	(0717)	COMMON POLICY DECLARATIONS
MU7847	(0701)	NYS ID CARDS IMPORTANT INSURANCE INFO FOR POLICYHOLDERS
* MU7916	(0103)	SUPPLEMENTAL SPOUSAL LIABILITY COVERAGE - NEW YORK
* MU8389	(0624)	COMMERCIAL AUTO BROAD FORM ENDORSEMENT

SCHEDULE OF AUTOS AND RELATED COVERAGES / DISCOUNTS

COVERED AUTO NO.	DESCRIPTION		ORIGINAL		TERRITORY				
	YEAR, MAKE, MODEL	VEHICLE IDENTIFICATION NUMBER (VIN)	COST NEW		TOWN & STATE WHERE PRINCIPALLY GARAGED				
001	2007 PJTM TRAILER 4P5D6122471092275		10,000 ACV		WARRENSBURG NY 167				
002	2003 HOME TRAILER 5HABV08163N029280		10,000 ACV		WARRENSBURG NY 167				
003	2002 HAUJ 16HTS10112P027439		5,000 ACV		WARRENSBURG NY 167				
004	2008 FORD F350 1FTSX31Y88EB42119		36,440 ACV		WARRENSBURG NY 167				
CLASSIFICATION									
COVERED AUTO NO.	RADIUS	BUSINESS USE S=SERVICE R=RETAIL C=COMM	SIZE, GVWR, GCW, SEATING CAPACITY	PRIMARY FACTOR			SECONDARY FACTOR		
				AGE GRP	LIAB	PHYS DAMAGE	LIAB	PHYS. DAMAGE	CLASS CODE
001	0-50	C	6,579	X	.080	.710/.510	1.000	1.000	068199
002	0-50			X	.080		1.000		068199
003	0-50			X	.080	.710/.510	1.000	1.000	068199
004	0-50			X	1.120	.920/1.100	1.000	0.910	003183
COVERED AUTO NO	LIABILITY			PIP		PROPERTY PROTECTION		ADDITIONAL PIP	
	LIMIT (000)	PREMIUM	LIMIT	PREMIUM	PREMIUM	LIMIT	PREMIUM		
001	1,000	50.00	*	14.00		*	Included		
002	1,000	47.00	*	14.00		*	Included		
003	1,000	36.00	*	14.00		*	Included		
004	1,000	701.00	*	29.00		*	Included		
COVERED AUTO NO	AUTO MED. PAY			UNINSURED MOTORISTS		UNDERINSURED MOTORISTS			
	LIMIT	PREMIUM	LIMIT (000)	PREMIUM	PREMIUM	PREMIUM			
001	5,000	1.00	1,000	Included		Included			
002	5,000	1.00	1,000	Included		Included			
003	5,000	1.00	1,000	Included		Included			
004	5,000	1.00	1,000	33.00		Included			
COVERED AUTO NO	COMPREHENSIVE †		SPECIFIED CAUSE OF LOSS ††		COLLISION				
	DEDUCTIBLE	PREMIUM	DEDUCTIBLE	PREMIUM	DEDUCTIBLE	TYPE	PREMIUM		
001	500	29.00			500		38.00		
002									
003	500	18.00			500		24.00		
004	500	80.00			500		102.00		
COVERED AUTO NO.	TOWING & LABOR			OTHER SURCHARGES	MISC PREMIUM	VEHICLE LIABILITY TOTAL	VEHICLE PHYSICAL DAMAGE TOTAL	VEHICLE TOTAL	
	PER DISABLEMENT	PREMIUM							
001			30.00			65.00	67.00	132.00	
002			INCLUDED			62.00		62.00	
003			INCLUDED			51.00	42.00	93.00	
004			INCLUDED			764.00	182.00	946.00	

* SEE PERSONAL INJURY PROTECTION SECTION OF THIS SCHEDULE FOR COVERAGES AND LIMITS

† Deductible for All Perils. (A maximum deductible may also apply. Refer to Coverage Form for details.)

†† Deductible for All Perils for Each Covered Auto. (A maximum deductible may also apply. Refer to Coverage Form for details.)

SCHEDULE OF AUTOS AND RELATED COVERAGES / DISCOUNTS

COVERED AUTO NO.	DESCRIPTION YEAR, MAKE, MODEL		VEHICLE IDENTIFICATION NUMBER (VIN)		ORIGINAL COST NEW	TERRITORY TOWN & STATE WHERE PRINCIPALLY GARAGED			
005	2011 FORD F350		1FDRF3H63BEA66124		60,000 ACV	WARRENSBURG NY 167			
006	2022 FORD RANGER		1FTER4FH5NLD13163		43,610 ACV	WARRENSBURG NY 167			

CLASSIFICATION									
COVERED AUTO NO.	RADIUS	BUSINESS USE S=SERVICE R=RETAIL C=COMM	SIZE, GVWR, GCW, SEATING CAPACITY	AGE GRP	PRIMARY FACTOR		SECONDARY FACTOR		
					LIAB	PHYS DAMAGE	LIAB	PHYS. DAMAGE	CLASS CODE
005	0-50	C	10,140	X	1.150	.940/1.010	1.000	0.910	023183
006	0-50	C	6,700	4	1.120	.920/1.100	1.000	0.910	003183

COVERED AUTO NO	LIABILITY		LIMIT	PIP		PROPERTY PROTECTION PREMIUM	ADDITIONAL PIP	
	LIMIT (000)	PREMIUM		LIMIT	PREMIUM		LIMIT	PREMIUM
005	1,000	769.00	*		29.00		*	Included
006	1,000	984.00	*		29.00		*	Included

COVERED AUTO NO	LIMIT	AUTO MED. PAY PREMIUM	UNINSURED MOTORISTS LIMIT (000)	UNINSURED MOTORISTS PREMIUM	UNDERINSURED MOTORISTS PREMIUM
005	5,000	1.00	1,000	33.00	Included
006	5,000	1.00	1,000	33.00	Included

COVERED AUTO NO	COMPREHENSIVE †		SPECIFIED CAUSE OF LOSS ††		COLLISION		
	DEDUCTIBLE	PREMIUM	DEDUCTIBLE	PREMIUM	DEDUCTIBLE	TYPE	PREMIUM
005	500	100.00			500		149.00
006	500	160.00			500		314.00

COVERED AUTO NO.	TOWING & LABOR		OTHER SURCHARGES	MISC PREMIUM	VEHICLE LIABILITY TOTAL	VEHICLE PHYSICAL DAMAGE TOTAL	VEHICLE TOTAL
	PER DISABLEMENT	PREMIUM					
005			INCLUDED		832.00	249.00	1,081.00
006			INCLUDED		1,047.00	474.00	1,521.00

SCHEDULE OF AUTOS AND RELATED COVERAGES / DISCOUNTS**NEW YORK MANDATORY PERSONAL INJURY PROTECTION (CA 22 32)**

Basic Economic Loss	Maximum Monthly Work Loss	Other Necessary Expenses (per day)	Death Benefit
\$ 50,000	\$ 2,000	\$ 25	\$ 2,000
Applicable to Auto(s): 001,002,003,004,005,006			

NEW YORK ADDED PERSONAL INJURY PROTECTION (CA 22 33)

Total Added Personal Injury Protection Limits	Maximum Monthly Work Loss	Other Necessary Expenses (per day)
\$ 50,000	\$ 1,000	\$ 25
Applicable to Auto(s): 001,002,003,004,005,006		

NEW YORK OPTIONAL BASIC ECONOMIC LOSS COVERAGE \$ 25,000 (CA 22 60)**AGGREGATE NO-FAULT BENEFITS AVAILABLE \$ 125,000****FULL SAFETY GLASS COVERAGE****Covered Auto(s):**

2008 FORD	1FTSX31Y88EB42119
2022 FORD	1FTER4FH5NLD13163

BUSINESS AUTO COVERAGE FORM

Various provisions in this Policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this Policy, the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we", "us" and "our" refer to the company providing this insurance.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions.

SECTION I – COVERED AUTOS

Item Two of the Declarations shows the "autos" that are covered "autos" for each of your coverages. The following numerical symbols describe the "autos" that may be covered "autos". The symbols entered next to a coverage on the Declarations designate the only "autos" that are covered "autos".

A. Description Of Covered Auto Designation Symbols

Symbol	Description Of Covered Auto Designation Symbols	
1	Any "Auto"	
2	Owned "Autos" Only	Only those "autos" you own (and for Covered Autos Liability Coverage any "trailers" you don't own while attached to power units you own). This includes those "autos" you acquire ownership of after the Policy begins.
3	Owned Private Passenger "Autos" Only	Only the private passenger "autos" you own. This includes those private passenger "autos" you acquire ownership of after the Policy begins.
4	Owned "Autos" Other Than Private Passenger "Autos" Only	Only those "autos" you own that are not of the private passenger type (and for Covered Autos Liability Coverage any "trailers" you don't own while attached to power units you own). This includes those "autos" not of the private passenger type you acquire ownership of after the Policy begins.
5	Owned "Autos" Subject To No-fault	Only those "autos" you own that are required to have no-fault benefits in the state where they are licensed or principally garaged. This includes those "autos" you acquire ownership of after the Policy begins provided they are required to have no-fault benefits in the state where they are licensed or principally garaged.
6	Owned "Autos" Subject To A Compulsory Uninsured Motorists Law	Only those "autos" you own that because of the law in the state where they are licensed or principally garaged are required to have and cannot reject Uninsured Motorists Coverage. This includes those "autos" you acquire ownership of after the Policy begins provided they are subject to the same state uninsured motorists requirement.
7	Specifically Described "Autos"	Only those "autos" described in Item Three of the Declarations for which a premium charge is shown (and for Covered Autos Liability Coverage any "trailers" you don't own while attached to any power unit described in Item Three).
8	Hired "Autos" Only	Only those "autos" you lease, hire, rent or borrow. This does not include any "auto" you lease, hire, rent or borrow from any of your "employees", partners (if you are a partnership), members (if you are a limited liability company) or members of their households.
9	Non-owned "Autos" Only	Only those "autos" you do not own, lease, hire, rent or borrow that are used in connection with your business. This includes "autos" owned by your "employees", partners (if you are a partnership), members (if you are a limited liability company) or members of their households but only while used in your business or your personal affairs.

19	Mobile Equipment Subject To Compulsory Or Financial Responsibility Or Other Motor Vehicle Insurance Law Only	Only those "autos" that are land vehicles and that would qualify under the definition of "mobile equipment" under this Policy if they were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where they are licensed or principally garaged.
----	--	---

B. Owned Autos

1. If Symbols **1, 2, 3, 4, 5, 6** or **19** are entered next to a coverage in Item Two of the Declarations, then you have coverage for "autos" that you acquire after the policy period begins of the type described for the remainder of the policy period.
2. But, if Symbol **7** is entered next to a coverage in Item Two of the Declarations, an "auto" you acquire after the policy period begins will be a covered "auto" for that coverage only if:
 - a. We already cover all "autos" that you own for that coverage or it replaces an "auto" you previously owned that had that coverage; and
 - b. You tell us within 30 days after you acquire it that you want us to cover it for that coverage.
3. An "auto" that is leased or rented to you without a driver, under a written agreement for a continuous period of at least six months that requires you to provide primary insurance covering such "auto", will be considered a covered "auto" you own.

C. Certain Trailers, Mobile Equipment And Temporary Substitute Autos

If Covered Autos Liability Coverage is provided by this Coverage Form, the following types of vehicles are also covered "autos" for Covered Autos Liability Coverage:

1. "Trailers" with a registered Gross Vehicle Weight Rating of 3,000 pounds or less designed primarily for travel on public roads.
2. "Mobile equipment" while being carried or towed by a covered "auto".
3. Any "auto" you do not own while used with the permission of its owner as a temporary substitute for a covered "auto" you own that is out of service because of its:
 - a. Breakdown;

- b. Repair;
- c. Servicing;
- d. "Loss"; or
- e. Destruction.

SECTION II – COVERED AUTOS LIABILITY COVERAGE

A. Coverage

We will pay all sums an "insured" legally must pay as damages because of "bodily injury" or "property damage" to which this insurance applies, caused by an "accident" and resulting from the ownership, maintenance or use of a covered "auto".

We will also pay all sums an "insured" legally must pay as a "covered pollution cost or expense" to which this insurance applies, caused by an "accident" and resulting from the ownership, maintenance or use of covered "autos". However, we will only pay for the "covered pollution cost or expense" if there is either "bodily injury" or "property damage" to which this insurance applies that is caused by the same "accident".

We have the right and duty to defend any "insured" against a "suit" asking for such damages or a "covered pollution cost or expense". However, we have no duty to defend any "insured" against a "suit" seeking damages for "bodily injury" or "property damage" or a "covered pollution cost or expense" to which this insurance does not apply. We may investigate and settle any claim or "suit" as we consider appropriate. Our duty to defend or settle ends when the Covered Autos Liability Coverage Limit of Insurance has been exhausted by payment of judgments or settlements.

1. Who Is An Insured

The following are "insureds":

- a. You for any covered "auto".
- b. Anyone else while using with your permission a covered "auto" you own, hire or borrow except:
 - (1) The owner or anyone else from whom you hire or borrow a covered "auto".

This exception does not apply if the covered "auto" is a "trailer" connected to a covered "auto" you own.

- (2) Your "employee" if the covered "auto" is owned by that "employee" or a member of his or her household.
 - (3) Someone using a covered "auto" while he or she is working in a business of selling, servicing, repairing, parking or storing "autos" unless that business is yours.
 - (4) Anyone other than your "employees", partners (if you are a partnership), members (if you are a limited liability company) or a lessee or borrower or any of their "employees", while moving property to or from a covered "auto".
 - (5) A partner (if you are a partnership) or a member (if you are a limited liability company) for a covered "auto" owned by him or her or a member of his or her household.
- c. Anyone liable for the conduct of an "insured" described above but only to the extent of that liability.

2. Coverage Extensions

a. Supplementary Payments

We will pay for the "insured":

- (1) All expenses we incur.
- (2) Up to \$2,000 for cost of bail bonds (including bonds for related traffic law violations) required because of an "accident" we cover. We do not have to furnish these bonds.
- (3) The cost of bonds to release attachments in any "suit" against the "insured" we defend, but only for bond amounts within our Limit of Insurance.
- (4) All reasonable expenses incurred by the "insured" at our request, including actual loss of earnings up to \$250 a day because of time off from work.
- (5) All court costs taxed against the "insured" in any "suit" against the "insured" we defend. However, these payments do not include attorneys' fees or attorneys' expenses taxed against the "insured".

- (6) All interest on the full amount of any judgment that accrues after entry of the judgment in any "suit" against the "insured" we defend, but our duty to pay interest ends when we have paid, offered to pay or deposited in court the part of the judgment that is within our Limit of Insurance.

These payments will not reduce the Limit of Insurance.

b. Out-of-state Coverage Extensions

While a covered "auto" is away from the state where it is licensed, we will:

- (1) Increase the Limit of Insurance for Covered Autos Liability Coverage to meet the limits specified by a compulsory or financial responsibility law of the jurisdiction where the covered "auto" is being used. This extension does not apply to the limit or limits specified by any law governing motor carriers of passengers or property.
- (2) Provide the minimum amounts and types of other coverages, such as no-fault, required of out-of-state vehicles by the jurisdiction where the covered "auto" is being used.

We will not pay anyone more than once for the same elements of loss because of these extensions.

B. Exclusions

This insurance does not apply to any of the following:

1. Expected Or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the "insured".

2. Contractual

Liability assumed under any contract or agreement.

But this exclusion does not apply to liability for damages:

- a. Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement; or

- b. That the "insured" would have in the absence of the contract or agreement.

3. Workers' Compensation

Any obligation for which the "insured" or the "insured's" insurer may be held liable under any workers' compensation, disability benefits or unemployment compensation law or any similar law.

4. Employee Indemnification And Employer's Liability

"Bodily injury" to:

- a. An "employee" of the "insured" arising out of and in the course of:
 - (1) Employment by the "insured"; or
 - (2) Performing the duties related to the conduct of the "insured's" business; or
- b. The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph **a.** above.

This exclusion applies:

- (1) Whether the "insured" may be liable as an employer or in any other capacity; and
- (2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

But this exclusion does not apply to "bodily injury" to domestic "employees" not entitled to workers' compensation benefits or to liability assumed by the "insured" under an "insured contract". For the purposes of the Coverage Form, a domestic "employee" is a person engaged in household or domestic work performed principally in connection with a residence premises.

5. Fellow Employee

"Bodily injury" to:

- a. Any fellow "employee" of the "insured" arising out of and in the course of the fellow "employee's" employment or while performing duties related to the conduct of your business; or
- b. The spouse, child, parent, brother or sister of that fellow "employee" as a consequence of Paragraph **a.** above.

6. Care, Custody Or Control

"Property damage" to or "covered pollution cost or expense" involving property owned or transported by the "insured" or in the "insured's" care, custody or control. But this exclusion does not apply to liability assumed under a sidetrack agreement.

7. Handling Of Property

"Bodily injury" or "property damage" resulting from the handling of property:

- a. Before it is moved from the place where it is accepted by the "insured" for movement into or onto the covered "auto"; or
- b. After it is moved from the covered "auto" to the place where it is finally delivered by the "insured".

8. Movement Of Property By Mechanical Device

"Bodily injury" or "property damage" resulting from the movement of property by a mechanical device (other than a hand truck) unless the device is attached to the covered "auto".

9. Operations

"Bodily injury" or "property damage" arising out of the operation of:

- a. Any equipment listed in Paragraphs **6.b.** and **6.c.** of the definition of "mobile equipment"; or
- b. Machinery or equipment that is on, attached to or part of a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

10. Completed Operations

"Bodily injury" or "property damage" arising out of your work after that work has been completed or abandoned.

In this exclusion, your work means:

- a. Work or operations performed by you or on your behalf; and
- b. Materials, parts or equipment furnished in connection with such work or operations.

Your work includes warranties or representations made at any time with respect to the fitness, quality, durability or performance of any of the items included in Paragraph **a.** or **b.** above.

Your work will be deemed completed at the earliest of the following times:

- (1) When all of the work called for in your contract has been completed;
- (2) When all of the work to be done at the site has been completed if your contract calls for work at more than one site; or

- (3) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

11. Pollution

"Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

- a. That are, or that are contained in any property that is:
- (1) Being transported or towed by, handled or handled for movement into, onto or from the covered "auto";
 - (2) Otherwise in the course of transit by or on behalf of the "insured"; or
 - (3) Being stored, disposed of, treated or processed in or upon the covered "auto";
- b. Before the "pollutants" or any property in which the "pollutants" are contained are moved from the place where they are accepted by the "insured" for movement into or onto the covered "auto"; or
- c. After the "pollutants" or any property in which the "pollutants" are contained are moved from the covered "auto" to the place where they are finally delivered, disposed of or abandoned by the "insured".

Paragraph a. above does not apply to fuels, lubricants, fluids, exhaust gases or other similar "pollutants" that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the covered "auto" or its parts if:

- (1) The "pollutants" escape, seep, migrate or are discharged, dispersed or released directly from an "auto" part designed by its manufacturer to hold, store, receive or dispose of such "pollutants"; and
- (2) The "bodily injury", "property damage" or "covered pollution cost or expense" does not arise out of the operation of any equipment listed in Paragraphs 6.b. and 6.c. of the definition of "mobile equipment".

Paragraphs b. and c. above of this exclusion do not apply to "accidents" that occur away from premises owned by or rented to an "insured" with respect to "pollutants" not in or upon a covered "auto" if:

- (a) The "pollutants" or any property in which the "pollutants" are contained are upset, overturned or damaged as a result of the maintenance or use of a covered "auto"; and
- (b) The discharge, dispersal, seepage, migration, release or escape of the "pollutants" is caused directly by such upset, overturn or damage.

12. War

"Bodily injury" or "property damage" arising directly or indirectly out of:

- a. War, including undeclared or civil war;
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

13. Racing

Covered "autos" while used in any professional or organized racing or demolition contest or stunting activity, or while practicing for such contest or activity. This insurance also does not apply while that covered "auto" is being prepared for such a contest or activity.

14. Unmanned Aircraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance or use of "unmanned aircraft".

C. Limit Of Insurance

Regardless of the number of covered "autos", "insureds", premiums paid, claims made or vehicles involved in the "accident", the most we will pay for the total of all damages and "covered pollution cost or expense" combined resulting from any one "accident" is the Limit Of Insurance for Covered Autos Liability Coverage shown in the Declarations.

All "bodily injury", "property damage" and "covered pollution cost or expense" resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one "accident".

No one will be entitled to receive duplicate payments for the same elements of "loss" under this Coverage Form and any Medical Payments Coverage endorsement, Uninsured Motorists Coverage endorsement or Underinsured Motorists Coverage endorsement attached to this Coverage Part.

SECTION III – PHYSICAL DAMAGE COVERAGE

A. Coverage

1. We will pay for "loss" to a covered "auto" or its equipment under:

- a. **Comprehensive Coverage**

From any cause except:

- (1) The covered "auto's" collision with another object; or
 - (2) The covered "auto's" overturn.

- b. **Specified Causes Of Loss Coverage**

Caused by:

- (1) Fire, lightning or explosion;
 - (2) Theft;
 - (3) Windstorm, hail or earthquake;
 - (4) Flood;
 - (5) Mischief or vandalism; or
 - (6) The sinking, burning, collision or derailment of any conveyance transporting the covered "auto".

- c. **Collision Coverage**

Caused by:

- (1) The covered "auto's" collision with another object; or
 - (2) The covered "auto's" overturn.

2. **Towing And Labor**

We will pay up to the limit shown in the Declarations for towing and labor costs incurred each time a covered "auto" that is a private passenger type, light truck or medium truck is disabled. However, the labor must be performed at the place of disablement.

3. **Glass Breakage – Hitting A Bird Or Animal – Falling Objects Or Missiles**

If you carry Comprehensive Coverage for the damaged covered "auto", we will pay for the following under Comprehensive Coverage:

- a. Glass breakage;
 - b. "Loss" caused by hitting a bird or animal; and
 - c. "Loss" caused by falling objects or missiles.

However, you have the option of having glass breakage caused by a covered "auto's" collision or overturn considered a "loss" under Collision Coverage.

4. **Coverage Extensions**

- a. **Transportation Expenses**

We will pay up to \$30 per day, to a maximum of \$900, for temporary transportation expense incurred by you because of the total theft of a covered "auto" of the private passenger type. We will pay only for those covered "autos" for which you carry either Comprehensive or Specified Causes Of Loss Coverage. We will pay for temporary transportation expenses incurred during the period beginning 48 hours after the theft and ending, regardless of the Policy's expiration, when the covered "auto" is returned to use or we pay for its "loss".

- b. **Loss Of Use Expenses**

For Hired Auto Physical Damage, we will pay expenses for which an "insured" becomes legally responsible to pay for loss of use of a vehicle rented or hired without a driver under a written rental contract or agreement. We will pay for loss of use expenses if caused by:

- (1) Other than collision only if the Declarations indicates that Comprehensive Coverage is provided for any covered "auto";
 - (2) Specified Causes of Loss only if the Declarations indicates that Specified Causes Of Loss Coverage is provided for any covered "auto"; or

- (3) Collision only if the Declarations indicates that Collision Coverage is provided for any covered "auto".

However, the most we will pay for any expenses for loss of use is \$30 per day, to a maximum of \$900.

B. Exclusions

1. We will not pay for "loss" caused by or resulting from any of the following. Such "loss" is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the "loss".

a. Nuclear Hazard

- (1) The explosion of any weapon employing atomic fission or fusion; or
- (2) Nuclear reaction or radiation, or radioactive contamination, however caused.

b. War Or Military Action

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

2. We will not pay for "loss" to any covered "auto" while used in any professional or organized racing or demolition contest or stunting activity, or while practicing for such contest or activity. We will also not pay for "loss" to any covered "auto" while that covered "auto" is being prepared for such a contest or activity.

3. We will not pay for "loss" due and confined to:
- a. Wear and tear, freezing, mechanical or electrical breakdown.
- b. Blowouts, punctures or other road damage to tires.

This exclusion does not apply to such "loss" resulting from the total theft of a covered "auto".

4. We will not pay for "loss" to any of the following:

- a. Tapes, records, discs or other similar audio, visual or data electronic devices designed for use with audio, visual or data electronic equipment.
- b. Any device designed or used to detect speed-measuring equipment, such as radar or laser detectors, and any jamming apparatus intended to elude or disrupt speed-measuring equipment.
- c. Any electronic equipment, without regard to whether this equipment is permanently installed, that reproduces, receives or transmits audio, visual or data signals.
- d. Any accessories used with the electronic equipment described in Paragraph c. above.

5. Exclusions 4.c. and 4.d. do not apply to equipment designed to be operated solely by use of the power from the "auto's" electrical system that, at the time of "loss", is:

- a. Permanently installed in or upon the covered "auto";
- b. Removable from a housing unit which is permanently installed in or upon the covered "auto";
- c. An integral part of the same unit housing any electronic equipment described in Paragraphs a. and b. above; or
- d. Necessary for the normal operation of the covered "auto" or the monitoring of the covered "auto's" operating system.

6. We will not pay for "loss" to a covered "auto" due to "diminution in value".

C. Limits Of Insurance

1. The most we will pay for:

- a. "Loss" to any one covered "auto" is the lesser of:
- (1) The actual cash value of the damaged or stolen property as of the time of the "loss"; or
- (2) The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality.

- b. All electronic equipment that reproduces, receives or transmits audio, visual or data signals in any one "loss" is \$1,000, if, at the time of "loss", such electronic equipment is:

- (1) Permanently installed in or upon the covered "auto" in a housing, opening or other location that is not normally used by the "auto" manufacturer for the installation of such equipment;
- (2) Removable from a permanently installed housing unit as described in Paragraph b.(1) above; or
- (3) An integral part of such equipment as described in Paragraphs b.(1) and b.(2) above.

- 2. An adjustment for depreciation and physical condition will be made in determining actual cash value in the event of a total "loss".
- 3. If a repair or replacement results in better than like kind or quality, we will not pay for the amount of the betterment.

D. Deductible

For each covered "auto", our obligation to pay for, repair, return or replace damaged or stolen property will be reduced by the applicable deductible shown in the Declarations prior to the application of the Limit Of Insurance, provided that:

- 1. The Comprehensive or Specified Causes Of Loss Coverage deductible applies only to "loss" caused by:
 - a. Theft or mischief or vandalism; or
 - b. All perils.
- 2. Regardless of the number of covered "autos" damaged or stolen, the maximum deductible applicable for all "loss" in any one event caused by:
 - a. Theft or mischief or vandalism; or
 - b. All perils,

will be equal to five times the highest deductible applicable to any one covered "auto" on the Policy for Comprehensive or Specified Causes Of Loss Coverage. The application of the highest deductible used to calculate the maximum deductible will be made regardless of which covered "autos" were damaged or stolen in the "loss".

SECTION IV – BUSINESS AUTO CONDITIONS

The following conditions apply in addition to the Common Policy Conditions:

A. Loss Conditions

1. Appraisal For Physical Damage Loss

If you and we disagree on the amount of "loss", either may demand an appraisal of the "loss". In this event, each party will select a competent appraiser. The two appraisers will select a competent and impartial umpire. The appraisers will state separately the actual cash value and amount of "loss". If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

- a. Pay its chosen appraiser; and
- b. Bear the other expenses of the appraisal and umpire equally.

If we submit to an appraisal, we will still retain our right to deny the claim.

2. Duties In The Event Of Accident, Claim, Suit Or Loss

We have no duty to provide coverage under this Policy unless there has been full compliance with the following duties:

- a. In the event of "accident", claim, "suit" or "loss", you must give us or our authorized representative prompt notice of the "accident" or "loss". Include:
 - (1) How, when and where the "accident" or "loss" occurred;
 - (2) The "insured's" name and address; and
 - (3) To the extent possible, the names and addresses of any injured persons and witnesses.
- b. Additionally, you and any other involved "insured" must:
 - (1) Assume no obligation, make no payment or incur no expense without our consent, except at the "insured's" own cost.
 - (2) Immediately send us copies of any request, demand, order, notice, summons or legal paper received concerning the claim or "suit".

- (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit".
 - (4) Authorize us to obtain medical records or other pertinent information.
 - (5) Submit to examination, at our expense, by physicians of our choice, as often as we reasonably require.
- c. If there is "loss" to a covered "auto" or its equipment, you must also do the following:
- (1) Promptly notify the police if the covered "auto" or any of its equipment is stolen.
 - (2) Take all reasonable steps to protect the covered "auto" from further damage. Also keep a record of your expenses for consideration in the settlement of the claim.
 - (3) Permit us to inspect the covered "auto" and records proving the "loss" before its repair or disposition.
 - (4) Agree to examinations under oath at our request and give us a signed statement of your answers.

3. Legal Action Against Us

No one may bring a legal action against us under this Coverage Form until:

- a. There has been full compliance with all the terms of this Coverage Form; and
- b. Under Covered Autos Liability Coverage, we agree in writing that the "insured" has an obligation to pay or until the amount of that obligation has finally been determined by judgment after trial. No one has the right under this Policy to bring us into an action to determine the "insured's" liability.

4. Loss Payment – Physical Damage Coverages

At our option, we may:

- a. Pay for, repair or replace damaged or stolen property;
- b. Return the stolen property, at our expense. We will pay for any damage that results to the "auto" from the theft; or
- c. Take all or any part of the damaged or stolen property at an agreed or appraised value.

If we pay for the "loss", our payment will include the applicable sales tax for the damaged or stolen property.

5. Transfer Of Rights Of Recovery Against Others To Us

If any person or organization to or for whom we make payment under this Coverage Form has rights to recover damages from another, those rights are transferred to us. That person or organization must do everything necessary to secure our rights and must do nothing after "accident" or "loss" to impair them.

B. General Conditions

1. Bankruptcy

Bankruptcy or insolvency of the "insured" or the "insured's" estate will not relieve us of any obligations under this Coverage Form.

2. Concealment, Misrepresentation Or Fraud

This Coverage Form is void in any case of fraud by you at any time as it relates to this Coverage Form. It is also void if you or any other "insured", at any time, intentionally conceals or misrepresents a material fact concerning:

- a. This Coverage Form;
- b. The covered "auto";
- c. Your interest in the covered "auto"; or
- d. A claim under this Coverage Form.

3. Liberalization

If we revise this Coverage Form to provide more coverage without additional premium charge, your policy will automatically provide the additional coverage as of the day the revision is effective in your state.

4. No Benefit To Bailee – Physical Damage Coverages

We will not recognize any assignment or grant any coverage for the benefit of any person or organization holding, storing or transporting property for a fee regardless of any other provision of this Coverage Form.

5. Other Insurance

a. For any covered "auto" you own, this Coverage Form provides primary insurance. For any covered "auto" you don't own, the insurance provided by this Coverage Form is excess over any other collectible insurance. However, while a covered "auto" which is a "trailer" is connected to another vehicle, the Covered Autos Liability Coverage this Coverage Form provides for the "trailer" is:

- (1) Excess while it is connected to a motor vehicle you do not own; or

(2) Primary while it is connected to a covered "auto" you own.

- b. For Hired Auto Physical Damage Coverage, any covered "auto" you lease, hire, rent or borrow is deemed to be a covered "auto" you own. However, any "auto" that is leased, hired, rented or borrowed with a driver is not a covered "auto".
- c. Regardless of the provisions of Paragraph a. above, this Coverage Form's Covered Autos Liability Coverage is primary for any liability assumed under an "insured contract".
- d. When this Coverage Form and any other Coverage Form or policy covers on the same basis, either excess or primary, we will pay only our share. Our share is the proportion that the Limit of Insurance of our Coverage Form bears to the total of the limits of all the Coverage Forms and policies covering on the same basis.

6. Premium Audit

- a. The estimated premium for this Coverage Form is based on the exposures you told us you would have when this Policy began. We will compute the final premium due when we determine your actual exposures. The estimated total premium will be credited against the final premium due and the first Named Insured will be billed for the balance, if any. The due date for the final premium or retrospective premium is the date shown as the due date on the bill. If the estimated total premium exceeds the final premium due, the first Named Insured will get a refund.
- b. If this Policy is issued for more than one year, the premium for this Coverage Form will be computed annually based on our rates or premiums in effect at the beginning of each year of the Policy.

7. Policy Period, Coverage Territory

Under this Coverage Form, we cover "accidents" and "losses" occurring:

- a. During the policy period shown in the Declarations; and
- b. Within the coverage territory.

The coverage territory is:

- (1) The United States of America;
- (2) The territories and possessions of the United States of America;
- (3) Puerto Rico;
- (4) Canada; and

- (5) Anywhere else in the world if a covered "auto" of the private passenger type is leased, hired, rented or borrowed without a driver for a period of 30 days or less,

provided that the "insured's" responsibility to pay damages is determined in a "suit" on the merits, in the United States of America, the territories and possessions of the United States of America, Puerto Rico or Canada, or in a settlement we agree to.

We also cover "loss" to, or "accidents" involving, a covered "auto" while being transported between any of these places.

8. Two Or More Coverage Forms Or Policies Issued By Us

If this Coverage Form and any other Coverage Form or policy issued to you by us or any company affiliated with us applies to the same "accident", the aggregate maximum Limit of Insurance under all the Coverage Forms or policies shall not exceed the highest applicable Limit of Insurance under any one Coverage Form or policy. This condition does not apply to any Coverage Form or policy issued by us or an affiliated company specifically to apply as excess insurance over this Coverage Form.

SECTION V – DEFINITIONS

A. "Accident" includes continuous or repeated exposure to the same conditions resulting in "bodily injury" or "property damage".

B. "Auto" means:

- 1. A land motor vehicle, "trailer" or semitrailer designed for travel on public roads; or
- 2. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

C. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these.

D. "Covered pollution cost or expense" means any cost or expense arising out of:

- 1. Any request, demand, order or statutory or regulatory requirement that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or

2. Any claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

"Covered pollution cost or expense" does not include any cost or expense arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

- a. That are, or that are contained in any property that is:
 - (1) Being transported or towed by, handled or handled for movement into, onto or from the covered "auto";
 - (2) Otherwise in the course of transit by or on behalf of the "insured"; or
 - (3) Being stored, disposed of, treated or processed in or upon the covered "auto";
- b. Before the "pollutants" or any property in which the "pollutants" are contained are moved from the place where they are accepted by the "insured" for movement into or onto the covered "auto"; or
- c. After the "pollutants" or any property in which the "pollutants" are contained are moved from the covered "auto" to the place where they are finally delivered, disposed of or abandoned by the "insured".

Paragraph a. above does not apply to fuels, lubricants, fluids, exhaust gases or other similar "pollutants" that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the covered "auto" or its parts, if:

- (1) The "pollutants" escape, seep, migrate or are discharged, dispersed or released directly from an "auto" part designed by its manufacturer to hold, store, receive or dispose of such "pollutants"; and
- (2) The "bodily injury", "property damage" or "covered pollution cost or expense" does not arise out of the operation of any equipment listed in Paragraph 6.b. or 6.c. of the definition of "mobile equipment".

Paragraphs b. and c. above do not apply to "accidents" that occur away from premises owned by or rented to an "insured" with respect to "pollutants" not in or upon a covered "auto" if:

- (a) The "pollutants" or any property in which the "pollutants" are contained are upset, overturned or damaged as a result of the maintenance or use of a covered "auto"; and
 - (b) The discharge, dispersal, seepage, migration, release or escape of the "pollutants" is caused directly by such upset, overturn or damage.
- E. "Diminution in value" means the actual or perceived loss in market value or resale value which results from a direct and accidental "loss".
 - F. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
 - G. "Insured" means any person or organization qualifying as an insured in the Who Is An Insured provision of the applicable coverage. Except with respect to the Limit of Insurance, the coverage afforded applies separately to each insured who is seeking coverage or against whom a claim or "suit" is brought.
 - H. "Insured contract" means:
 - 1. A lease of premises;
 - 2. A sidetrack agreement;
 - 3. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
 - 4. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
 - 5. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another to pay for "bodily injury" or "property damage" to a third party or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement; or

6. That part of any contract or agreement entered into, as part of your business, pertaining to the rental or lease, by you or any of your "employees", of any "auto". However, such contract or agreement shall not be considered an "insured contract" to the extent that it obligates you or any of your "employees" to pay for "property damage" to any "auto" rented or leased by you or any of your "employees".

An "insured contract" does not include that part of any contract or agreement:

- a. That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;
 - b. That pertains to the loan, lease or rental of an "auto" to you or any of your "employees", if the "auto" is loaned, leased or rented with a driver; or
 - c. That holds a person or organization engaged in the business of transporting property by "auto" for hire harmless for your use of a covered "auto" over a route or territory that person or organization is authorized to serve by public authority.
- I. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".
- J. "Loss" means direct and accidental loss or damage.
- K. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:
- 1. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
 - 2. Vehicles maintained for use solely on or next to premises you own or rent;
 - 3. Vehicles that travel on crawler treads;
 - 4. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - a. Power cranes, shovels, loaders, diggers or drills; or
 - b. Road construction or resurfacing equipment such as graders, scrapers or rollers;

5. Vehicles not described in Paragraph 1., 2., 3. or 4. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

- a. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well-servicing equipment; or
- b. Cherry pickers and similar devices used to raise or lower workers; or

6. Vehicles not described in Paragraph 1., 2., 3. or 4. above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

- a. Equipment designed primarily for:

- (1) Snow removal;
- (2) Road maintenance, but not construction or resurfacing; or
- (3) Street cleaning;

- b. Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

- c. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting or well-servicing equipment.

However, "mobile equipment" does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

- L. "Pollutants" means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

- M. "Property damage" means damage to or loss of use of tangible property.

- N. "Suit" means a civil proceeding in which:

- 1. Damages because of "bodily injury" or "property damage"; or
 - 2. A "covered pollution cost or expense";
- to which this insurance applies, are alleged.

"Suit" includes:

- a. An arbitration proceeding in which such damages or "covered pollution costs or expenses" are claimed and to which the "insured" must submit or does submit with our consent; or
- b. Any other alternative dispute resolution proceeding in which such damages or "covered pollution costs or expenses" are claimed and to which the insured submits with our consent.

O. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

P. "Trailer" includes semitrailer.

Q. "Unmanned aircraft" means an aircraft that is not:

- 1. Designed;
- 2. Manufactured; or
- 3. Modified after manufacture;

to be controlled directly by a person from within or on the aircraft.

COMMERCIAL AUTO
CA 04 21 11 20

FULL SAFETY GLASS COVERAGE

AUTO DEALERS COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

This endorsement changes the Policy effective on the inception date of the Policy unless another date is indicated below.

Endorsement Effective Date:

Designation Or Description Of Covered "Autos" To Which This Insurance Applies
Enter an "X" in only one of the following check boxes:

- ☐ All covered "autos"
- ☐ All covered "autos" of the private passenger type
- ☐ Each covered "auto" described below:

Physical Damage Coverage is modified as follows:
Paragraph **D. Deductible** in the Business Auto and Motor Carrier Coverage Forms and Paragraph **F.5. Deductible** in the Auto Dealers Coverage Form are amended by the addition of the following:

Additionally, if the Declarations indicates that Comprehensive Coverage applies, no Comprehensive Coverage deductible applies to the cost of repairing or replacing damaged safety glass on the covered "auto(s)" described in the Schedule.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PUBLIC OR LIVERY PASSENGER CONVEYANCE AND ON-DEMAND DELIVERY SERVICES EXCLUSION

This endorsement modifies insurance provided under the following:

AUTO DEALERS COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

A. Changes In Covered Autos Liability Coverage

The following exclusion is added:

Public Or Livery Passenger Conveyance And On-demand Delivery Services

This insurance does not apply to any covered "auto" while being used:

1. As a public or livery conveyance for passengers. This includes, but is not limited to, any period of time a covered "auto" is being used by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the covered "auto"; or
2. By an "insured" who is logged into a "transportation network platform" or "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered are in the covered "auto".

However, this exclusion does not apply to business activities performed by an "insured" that are directly related to the Named Insured(s) listed in the Declarations.

B. Changes In Physical Damage Coverage

The following exclusion is added:

We will not pay for "loss" to any covered "autos" while being used:

1. As a public or livery conveyance for passengers. This includes, but is not limited to, any period of time a covered "auto" is being used by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the covered "auto"; or

2. By an "insured" who is logged into a "transportation network platform" or "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered are in the covered "auto".

However, this exclusion does not apply to business activities performed by an "insured" that are directly related to the Named Insured(s) listed in the Declarations.

C. Changes In Auto Medical Payments

If Auto Medical Payments Coverage is attached, then the following exclusion is added:

Public Or Livery Passenger Conveyance And On-demand Delivery Services

This insurance does not apply to:

"Bodily injury" sustained by an "insured" "occupying" a covered "auto" while it is being used:

1. As a public or livery conveyance for passengers. This includes, but is not limited to, any period of time a covered "auto" is being used by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the covered "auto"; or
2. By an "insured" who is logged into a "transportation network platform" or "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered are in the covered "auto".

However, this exclusion does not apply to business activities performed by an "insured" that are directly related to the Named Insured(s) listed in the Declarations.

D. Changes In Uninsured And/Or Underinsured Motorists Coverage

1. If Uninsured and/or Underinsured Motorists Coverage is attached, and:
 - a. Contains, in whole or in part, a public or livery exclusion, then the following exclusion in Paragraph 2. does not apply.
 - b. Does not contain a public or livery exclusion, then the following exclusion in Paragraph 2. is added.

2. Public Or Livery Passenger Conveyance And On-demand Delivery Services

This insurance does not apply to any covered "auto" while being used:

- a. As a public or livery conveyance for passengers. This includes, but is not limited to, any period of time a covered "auto" is being used by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the covered "auto"; or
- b. By an "insured" who is logged into a "transportation network platform" or "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered are in the covered "auto".

However, this exclusion does not apply to business activities performed by an "insured" that are directly related to the Named Insured(s) listed in the Declarations.

E. Changes In Personal Injury Protection Coverage

1. If Personal Injury Protection, no-fault or other similar coverage is attached, and:
 - a. Contains, in whole or in part, a public or livery exclusion, then the following exclusion in Paragraph 2. does not apply.
 - b. Does not contain a public or livery exclusion, then the following exclusion in Paragraph 2. is added.

2. Public Or Livery Passenger Conveyance And On-demand Delivery Services

This insurance does not apply to any covered "auto" while being used:

- a. As a public or livery conveyance for passengers. This includes, but is not limited to, any period of time a covered "auto" is being used by an "insured" who is logged into a "transportation network platform" as a driver, whether or not a passenger is "occupying" the covered "auto"; or
- b. By an "insured" who is logged into a "transportation network platform" or "delivery network platform" as a driver to provide "delivery services", whether or not the goods, items or products to be delivered are in the covered "auto".

However, this exclusion does not apply to business activities performed by an "insured" that are directly related to the Named Insured(s) listed in the Declarations.

F. Additional Definitions

As used in this endorsement:

1. "Delivery network platform" means an online-enabled application or digital network, used to connect customers:
 - a. With drivers; or
 - b. With local vendors using drivers;for the purpose of providing prearranged "delivery services" for compensation. A "delivery network platform" does not include a "transportation network platform".
2. "Delivery services" includes courier services.
3. "Occupying" means in, upon, getting in, on, out or off.
4. "Transportation network platform" means an online-enabled application or digital network used to connect passengers with drivers using vehicles for the purpose of providing prearranged transportation services for compensation.

COMMERCIAL AUTOMOBILE EXPLANATION OF SUM COVERAGE – NEW YORK

New York State Regulation 35-D requires that we offer you Supplementary Uninsured / Underinsured Motorists Coverage (SUM).

New York Law permits you to make certain decisions regarding Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured (SUM) Motorists coverage. This document describes these coverages and the options available.

You should read this document carefully and contact your agent if you have any questions regarding Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured (SUM) Motorists Coverage and your options with respect to these coverages.

This document includes general descriptions of coverage. However, no coverage is provided by this document. You should read your policy and review your Declarations Page(s) and/or Schedule(s) for complete information on the coverages you are provided.

BASICS OF SUM COVERAGE

- (A)** SUM provides additional insurance coverage for bodily injury, including death resulting therefrom, sustained by an insured, as a result of an accident involving a negligent owner or operator of another motor vehicle who:
 - (1)** may have no insurance whatsoever; or
 - (2)** even if insured, is only insured for third-party bodily injury coverage at relatively low liability limits, in comparison to the policyholder's own liability limits for bodily injury sustained by third-parties.
- (B)** An insurer shall not offer SUM coverage in an amount exceeding the third party liability coverage limits purchased by the policyholder. The policy shall provide coverage for any insured under the policy for:
 - (1)** bodily injury to such person, up to the limit of the SUM coverage purchased; and
 - (2)** receive from the policyholder's own insurer payment for bodily injury sustained due to the negligence of the other motor vehicle's owner or operator.
- (C)** The maximum amount payable under the SUM coverage shall be the policy's SUM limit reduced and thus offset by any motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident.

THE DIFFERENCE BETWEEN STATUTORY UNINSURED MOTORISTS COVERAGE AND SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE

The following is an advisory explanation of the notable differences between Statutory Uninsured Motorists Coverage and Supplementary Uninsured/Underinsured Motorists Coverage and is not intended to substitute for a complete review of both coverages. If there is any conflict between the policy and this advisory explanation, the provisions of the policy apply.

STATUTORY UNINSURED MOTORISTS COVERAGE

Statutory Uninsured Motorist Coverage provides insurance protection to an insured for damages which the insured or the insured's legal representative is legally entitled to recover from the owner or operator of an uninsured motor vehicle because of bodily injury caused by an automobile accident. Also included are damages due to bodily injury that result from an automobile accident with a hit-and-run vehicle whose owner or operator cannot be identified.

If someone is hurt by this type of motorist and doesn't die, your Statutory Uninsured Motorists Coverage can pay up to \$25,000 for each person injured, with \$50,000 maximum for each accident. If bodily injury results in death, your Statutory Uninsured Motorists Coverage can pay up to \$50,000 for each person who dies as a result of bodily injury, with \$100,000 maximum for each accident resulting in death to two or more people. These are the **only** available limits under Statutory Uninsured Motorists Coverage.

Statutory Uninsured Motorists Coverage applies only to accidents which occur within the State of New York.

SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE

Supplementary Uninsured/Underinsured Motorist (SUM) Coverage applies to accidents that occur in New York State and throughout the United States, its territories or possessions, or Canada.

SUM Coverage also protects you, a family member who lives with you, or someone in an auto you are operating, if there is an accident with an auto that has bodily injury liability insurance coverage, but its bodily injury liability insurance is less than the bodily injury liability insurance that you have on your own auto. This kind of insurance is called "Underinsured Motorists Coverage," and it is included under SUM Coverage.

If you decide to buy SUM Coverage, you may buy this coverage at limits higher than the Statutory Uninsured Motorists Coverage limits. However, the SUM Coverage cannot be purchased in an amount exceeding the third party liability coverage limits purchased.

If you have an accident, your SUM Coverage limit will be reduced by any liability insurance or bond payments made by a negligent motorist.

AVAILABLE UM/SUM LIMITS

In accordance with New York Insurance Department Regulation No. 35-D, the following UM/SUM limits are available provided that the SUM limits selected do not exceed the bodily injury liability limits you have selected:

1. STATUTORY UM COVERAGE LIMITS OF \$25,000/\$50,000

\$25,000 per person and \$50,000 per accident, regardless of the number of persons involved in any given accident.

2. SUM COVERAGE WITH BASIC LIMITS OF \$25,000/\$50,000 EXTENDED OUT-OF-STATE

\$25,000 per person, extended out-of-state, and \$50,000 per accident, regardless of the number of persons involved in any given accident, extended out-of-state.

3. SUM COVERAGE WITH LIMITS HIGHER THAN \$25,000/\$50,000 EXTENDED OUT-OF-STATE

In addition to the \$25,000/\$50,000 limits shown in 2. above, higher limits are available in the following amounts, extended out-of-state:

SINGLE LIMITS:

\$60,000	\$200,000	\$400,000
\$100,000	\$250,000	\$500,000
\$125,000	\$300,000	
\$150,000	\$350,000	

For other limits, contact your agent.

EXAMPLES OF HOW SUM COVERAGE APPLIES

The following examples (using the per person limits) illustrate the proper application of SUM coverage:

(1) Example One:

Insured's Bodily Injury Damages	\$300,000
Insured's Liability Limit	\$500,000
Insured's SUM Limit	\$250,000
Other Motor Vehicle Liability Limit	\$25,000

RESULT: In this example, the insured has purchased the maximum amount of SUM coverage that must be offered by the insurer, provided that the insured has purchased bodily injury liability limits of at least \$250,000. Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle, and \$225,000 (\$250,000 minus \$25,000) under the SUM coverage, for a total recovery of \$250,000.

In the event that the negligent owner or operator of the other motor vehicle had no liability insurance at all, the insured would collect \$250,000 in SUM coverage from the insured's own insurer. However, if the owner or operator of the other motor vehicle was not negligent, then the insured would receive no SUM payments.

(2) Example Two:

Insured's Bodily Injury Damages	\$100,000
Insured's Liability Limit	\$25,000
Insured's SUM Limit	\$25,000
Other Motor Vehicle Liability Limit	\$25,000

RESULT: Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle. The insured receives nothing under the SUM coverage, which equals the mandatory UM coverage, since the liability limits on the other owner or operator's motor vehicle were not lower than the liability insurance limits on the insured's motor vehicle. If the insured's liability and SUM limits were both \$50,000, then the insured would collect another \$25,000 in SUM coverage from the insured's own insurer.

(3) Example Three:

Insured's Bodily Injury Damages	\$60,000
Insured's Liability Limit	\$100,000
Insured's SUM Limit	\$100,000
Other Motor Vehicle Liability Limit	\$50,000

RESULT: Insured recovers \$50,000 from the negligent owner or operator of the other motor vehicle and \$10,000 under the SUM coverage, which is the difference between the amount of the insured's SUM coverage and the liability coverage available from the other motor vehicle owner or operator, limited by the amount of the insured's bodily injury damages.

(4) Example Four:

Insured's Bodily Injury Damages	\$150,000
Insured's Liability Limit	\$100,000
Insured's SUM Limit	\$100,000
Other Motor Vehicle Liability Limit	\$25,000

RESULT: If the insured and the owner or operator of the other motor vehicle were each 50 percent at fault for the accident, then the insured's total recovery would be \$75,000, in light of comparative negligence of the parties involved in the accident. The insured would recover \$25,000 from the negligent owner or operator of the other motor vehicle and \$50,000 under the SUM coverage.

On the other hand, if the owner or operator of the other motor vehicle was totally at fault for the accident, then the insured would recover \$25,000 from the negligent motor vehicle owner or operator, and would then receive \$75,000 in SUM coverage from the insured's own insurer. Had the insured purchased liability and SUM limits of \$150,000 or more, the SUM recovery would then be \$125,000.

(5) Example Five:

Insured's Bodily Injury Damages	\$25,000
Passenger's Bodily Injury Damages	\$25,000
Another Passenger's Damages that resulted in death	\$50,000
Insured's Combined Single Liability (CSL) Limit	\$75,000
Insured's CSL SUM Limit	\$75,000
Other Motor Vehicle Liability Limit	Uninsured (i.e. no coverage)

RESULT: Since the other motor vehicle was uninsured, the full \$75,000 CSL SUM limit is available for all insured persons from this accident under the policy. However, since the accident involves insured persons who were both injured and killed, the mandatory UM limits of \$25,000 per person and \$50,000 per accident for injured persons and \$50,000 per person and \$100,000 per accident for persons killed in the accident are available. Therefore, the insured and first passenger each recover \$25,000 and the second passenger's estate recovers the full \$50,000 under the SUM coverage.

If the insured's CSL and CSL SUM limit were each \$300,000 and the insured's damages amounted to \$200,000 then all insured persons would be covered under the SUM coverage as the total damages (\$200,000 + \$25,000 + \$50,000 = \$275,000) are less than the \$300,000 CSL SUM limit.

IMPORTANT

SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE (SUM COVERAGE) PROVIDES INSURANCE PROTECTION FOR ANY PERSON INCLUDED AS INSURED UNDER YOUR POLICY IF HE OR SHE IS INJURED IN AN ACCIDENT INVOLVING ANOTHER MOTOR VEHICLE WHOSE OWNER OR OPERATOR WAS NEGLIGENT BUT WHO HAS EITHER NO BODILY INJURY OR LIABILITY INSURANCE, OR LESS THAN THE INSURANCE YOU CARRY. SUM COVERAGE IS AVAILABLE UNDER YOUR POLICY UNLESS YOU SIGN A WAIVER DECLINING THE COVERAGE. YOU ARE URGED TO CAREFULLY CONSIDER THIS DECISION.

If you decide you do not want Supplementary Uninsured/Underinsured Motorist Coverage, you must reject the coverage in writing. Contact your insurance agent for more information.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MERCHANTS COMMERCIAL AUTOMOBILE – BROAD FORM ENDORSEMENT

COVERAGE INDEX

This is a summary of the various additional coverages and coverage modifications provided by this endorsement. No coverage is provided by this summary. Refer to the actual endorsement (beginning on page 2) for changes affecting your Commercial Auto policy.

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This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

This endorsement changes the policy effective on the inception date of the policy unless another date is indicated below.

Endorsement Effective:	Policy No.
Named Insured:	Countersigned by:

Authorized Representative

This endorsement premium is \$ **SEE CONTINUOUS DECLARATIONS PAGE** subject to a minimum premium of \$ 200.00. Any minimum premium applies in addition to any other applicable minimum premium(s).

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

A. BROAD FORM INSURED

SECTION II - LIABILITY COVERAGE - WHO IS AN INSURED is amended to include as an "insured":

1. Any subsidiary which is a legally incorporated entity of which you own a financial interest of more than 50% of the voting stock on the effective date of this Coverage Form.

However, the insurance afforded by this provision does not apply to any subsidiary that is an "insured" under any other automobile liability policy, or would be an "insured" under such policy but for the termination of such policy or the exhaustion of such policy's limits of insurance.

2. Any organization you newly acquire or form, and over which you maintain majority interest.

The insurance afforded by this provision:

- a. Is effective on the acquisition or formation date, and is afforded only until the end of the policy period of this Coverage Form, or the next anniversary of its inception date, whichever is earlier.
- b. Does not apply to "bodily injury" or "property damage" resulting from an "accident" that occurred before you acquired or formed the organization.
- c. Does not include any newly acquired or formed organization that is:
 - (1) A joint venture or partnership; or
 - (2) An "insured" under any other automobile liability policy, or would be an "insured" under such policy but for the termination of such policy or the exhaustion of such policy's limits of insurance.

3. Any of your employees while using a covered "auto" in your business or your personal affairs, provided you do not own, hire or borrow that "auto".

B. COVERAGE EXTENSIONS - SUPPLEMENTARY PAYMENTS

SECTION II - LIABILITY COVERAGE, A2.a. Supplementary Payments, items (2) and (4) are replaced by the following:

- (2) Up to \$3,000 for cost of bail bonds (including bonds for related traffic law violations) required because of an "accident" we cover. We do not have to furnish these bonds.
- (4) All reasonable expenses incurred by the "insured" at our request, including actual loss of earnings up to \$500 a day because of time off work.

C. HIRED AUTO PHYSICAL DAMAGE COVERAGE

SECTION III - PHYSICAL DAMAGE COVERAGE, A. Coverage is amended by adding the following:

If Comprehensive, Specified Causes of Loss or Collision coverages are provided under this Coverage Form, then Hired Auto Physical Damage Coverage is provided for those coverages, subject to the following:

1. Subject to provision **C.2.**, below, the most we will pay for any one "accident" or "loss" is:
 - a. Actual cash value; or
 - b. Cost of repair or replacement, whichever is less.
2. The limit of insurance as determined in provision **C.1.**, above, will be reduced by a deductible for each covered "auto". Such deductible will:
 - a. Be equal to the largest deductible for that coverage applicable to any owned "auto"; and
 - b. Not apply to "loss" caused by fire or lightning.
3. Hired Auto Physical Damage Coverage is primary and noncontributory.
4. Subject to provisions **C.1.**, **2.**, and **3.**, above, we will provide coverage equal to the broadest coverage applicable to any covered "auto" shown in the Declarations.
5. Loss of use of the hired "auto" will also be covered, subject to a maximum of \$750 per "accident", if:
 - a. It results from an "accident"; and
 - b. You are legally liable.

D. TOWING AND LABOR COSTS COVERAGE

SECTION III - PHYSICAL DAMAGE COVERAGE, A. Coverage, 2. Towing is deleted and replaced by the following:

We will pay up to \$300 for towing and labor costs incurred each time a covered "auto" of the private passenger type, light weight or medium weight truck with a gross vehicle weight of 20,000 lbs. or less as defined by the manufacturer as the maximum loaded weight the auto is designed to carry is disabled, unless a higher limit is shown in the Declarations. However, the labor must be performed at the place of disablement. We will pay only for those covered "autos" for which you carry Comprehensive Coverage.

E. PHYSICAL DAMAGE INSURANCE - ADDITIONAL TRANSPORTATION EXPENSE

SECTION III - PHYSICAL DAMAGE COVERAGE, A. Coverage, 4.a. Transportation Expenses is deleted and replaced by the following:

When there is a "loss" to a covered "auto" of the private passenger type, light weight or medium weight truck with a gross vehicle weight of 20,000 lbs. or less as defined by the manufacturer as the maximum loaded weight the auto is designed to carry, we will pay for temporary transportation expenses incurred by you. Payment applies in addition to the otherwise applicable amount of each coverage you have on a covered "auto."

This coverage applies only:

1. For those expenses incurred during the policy period beginning 24 hours after the "loss";
2. To necessary and actual expenses incurred;
3. To a "loss" for which we also pay a "loss" under PHYSICAL DAMAGE COVERAGE for Comprehensive Coverage, Specified Causes of Loss Coverage or Collision Coverage; and

Our payment will be limited to that period of time reasonably required to repair or replace the covered "auto". We will pay up to \$60 per day, subject to a maximum of \$1,800. When combining this coverage with other purchased rental coverage, we will pay up to the combined limits or the cost of renting a similar or comparable vehicle, whichever is less.

F. VEHICLE CUSTOMIZATION COVERAGE ON A TOTAL LOSS

SECTION III - PHYSICAL DAMAGE COVERAGE, A. Coverage is amended by adding the following:

If a covered vehicle is determined to be a total loss by Merchants from a covered peril under this policy, then a limit of \$2,500 will be available for the replacement of vehicle customizations including, but not limited to:

1. Special carpeting and insulation;
2. Height-extending roofs;
3. Custom murals, paintings, wraps, or other decals or graphics.

The \$2,500 limit on this coverage is a policy term limit.

This coverage does not apply to electronic equipment.

G. ELECTRONIC EQUIPMENT COVERAGE

SECTION III - PHYSICAL DAMAGE COVERAGE A. Coverage is amended by adding the following:

1. We will pay with respect to a covered "auto" for "loss" to any electronic equipment that receives or transmits audio, visual or data signals and that is not designed solely for the reproduction of sound. This coverage applies only if the equipment is permanently installed in the covered "auto" at the time of the "loss" or the equipment is removable from a housing unit which is permanently installed in the covered "auto" at the time of the "loss", and such equipment is designed to be solely operated by use of the power from the "auto's" electrical system, in or upon the covered "auto".
2. We will pay with respect to a covered "auto" for "loss" to any accessories used with the electronic equipment described in Paragraph **G.1.** above. However, this does not include tapes, records or discs.

The exclusions that apply the PHYSICAL DAMAGE COVERAGE, except for the exclusion relating to Audio, Visual and Data Electronic Equipment, also apply to the coverage provided herein. In addition, the following exclusions apply:

We will not pay, under this coverage, for either any electronic equipment or accessories used with such electronic equipment that is:

1. Necessary for the normal operation of the covered "auto" or the monitoring of the covered "auto's" operating system; or
2. Both:
 - a. An integral part of the same unit housing any sound reproducing equipment designed solely for the reproduction of sound if the sound reproducing equipment is permanently installed in the covered "auto"; and
 - b. Permanently installed in the opening of the dash or console normally used by the manufacturer for the installation of a radio.

The most we will pay for all "loss" to audio, visual or data electronic equipment and any accessories used with this equipment as a result of any one "accident" is the least of:

1. The actual cash value of the damaged or stolen property at the time of the "loss";
2. The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality; or
3. \$500.

This coverage will not apply if there is other insurance provided by this policy for the above described electronic equipment. We will, however, pay any deductible, up to \$500, that is applicable under the provisions of the other insurance.

H. PERSONAL EFFECTS COVERAGE

SECTION III - PHYSICAL DAMAGE COVERAGE, A. Coverage is amended by adding the following:

If you have purchased Comprehensive Coverage on this policy for an "auto" you own and that "auto" is stolen, we will pay, without application of a deductible, up to \$500 for personal effects stolen with the "auto".

As used in this provision, personal effects means tangible property that is worn or carried by an "insured". Personal effects does not include tools, jewelry, money or securities.

The insurance provided under this provision, is excess over any other collectible insurance.

I. AIRBAG COVERAGE

SECTION III - PHYSICAL DAMAGE COVERAGE, B. Exclusions, item **3.** is amended by adding the following:

If you have purchased Comprehensive or Collision Coverage under this policy, the portion of this exclusion relating to mechanical or electrical breakdown does not apply to the accidental discharge of an airbag. This coverage is excess of other collectible insurance or warranty. No deductible applies to Airbag Coverage.

J. PHYSICAL DAMAGE INSURANCE - GLASS BREAKAGE

SECTION III - PHYSICAL DAMAGE COVERAGE, D. Deductible is amended by adding the following:

With respect to covered "autos" of the private passenger type, light weight or medium weight truck with a gross vehicle weight of 20,000 lbs. or less as defined by the manufacturer as the maximum loaded weight the auto is designed to carry, any deductible shown in the Declarations will not apply to glass breakage if such glass is repaired, in a manner acceptable to us, rather than replaced.

K. ADDITIONAL DEDUCTIBLE PROVISION

SECTION III - PHYSICAL DAMAGE COVERAGE, D. Deductible is amended by adding the following:

If a "loss" covered under this Coverage Part also involves a "loss" to other property from the same "accident," which is covered under another policy issued by "us" or another member company of ours for you, only the highest deductible applicable to those coverages will be applied to the "accident."

L. AMENDED DUTIES IN THE EVENT OF ACCIDENT, CLAIM, SUIT OR LOSS

SECTION IV - BUSINESS AUTO CONDITIONS, paragraph **A.2. Duties In The Event Of Accident, Claim, Suit Or Loss** is amended as follows:

1. Loss Condition **2.a.** will not apply until after the "accident", claim, "suit" or "loss" is known to:
 - a. You, if you are an individual;
 - b. A partner, if you are a partnership; or
 - c. An executive officer or insurance manager, if you are a corporation.
2. Loss Condition **2.b.** will not apply until after the claim or "suit" is known to:
 - a. You, if you are an individual;
 - b. A partner, if you are a partnership; or
 - c. An executive officer or insurance manager, if you are a corporation.

M. TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US - BLANKET WAIVER OF SUBROGATION

SECTION IV - BUSINESS AUTO CONDITIONS, paragraph **A.5., Transfer Of Rights Of Recovery Against Others To Us** is deleted and replaced by the following:

If any person or organization to or for whom we make payment under this Coverage Form has rights to recover damages from another, which have not been waived through the execution of an "insured contract", written agreement, or permit, prior to the "accident" or "loss" giving rise to the payment, those rights to recover damages from another are transferred to us. That person or organization must do everything necessary to secure our rights and must do nothing after the "accident" or "loss" to impair them.

N. UNINTENTIONAL FAILURE TO DISCLOSE HAZARDS

SECTION IV - BUSINESS AUTO CONDITIONS, paragraph **B.2., Concealment, Misrepresentation Or Fraud** is amended by adding the following:

If you unintentionally fail to disclose any hazards existing on the effective date of this Coverage Form, we will not deny coverage under this Coverage Form because of such failure.

O. AUTOS RENTED BY EMPLOYEES

Any "auto" hired or rented by your "employee" on your behalf, at your direction, and for your business use will be considered an "auto" you hire.

SECTION IV - BUSINESS AUTO CONDITIONS, paragraph **B.5., Other Insurance** is amended by adding the following:

If an "employee's" personal insurance also applies on an excess basis to a covered "auto" hired or rented by your "employee" on your behalf and at your direction, this insurance will be primary to the "employee's" personal insurance.

P. ADDITIONAL INSURED BY WRITTEN CONTRACT OR WRITTEN AGREEMENT

1. Paragraph **A.1 – WHO IS AN INSURED – Section II Liability Coverage** is amended to add:

- c. When a person or organization is required to be added to your Business Auto Policy as an additional insured by written contract or written agreement, that person or organization is an "insured", but only to the extent such a person or organization qualifies as an insured under the Who Is An Insured provision contained in Section II of the Business Auto coverage form with regard to the ownership, maintenance or use of a covered "auto".

The insurance afforded to any such additional insured applies only if the "bodily injury" or "property damage" occurs:

- (1) During the policy period; and
- (2) Subsequent to the execution of such written contract, and
- (3) Prior to the expiration of the period of time that the written contract requires such insurance to be provided to the additional insured.

This insurance applies on a primary and non-contributory basis if that is required by the written contract or written agreement.

Q. LOSS OF USE FOR ATTACHED SPECIALIZED EQUIPMENT TO AN INSURED VEHICLE

- 1. If a covered vehicle is determined to be a total loss by Merchants from a covered peril under this policy, then a limit of \$2,500 (subject to a \$250 deductible) will be available for the removal or replacement of specialized attachable equipment unable to be used due to the total loss of the vehicle, whether or not the equipment was attached to the vehicle at the time of loss.
 - a. The \$2,500 limit on this coverage is a policy term limit.
 - b. This coverage applies to, but is not limited by, the following:
 - i. Plows;
 - ii. Truck Salters;
 - iii. Ladder Racks; and
 - iv. Truck Caps
 - c. If payment is made under this coverage, Merchants retains the right of salvage to the equipment.

All of the above additional coverages are subject to all other provisions of this policy.

You've Been Robbed

What are you going to do about it?

**We're In This
Together.**

**Together We
Can Stop It.**



**Join The Fight Against
Insurance Fraud**

1-800-401-6695

**The Merchants'
Fraud Tip Line**

Don't Be A Victim

Right now, there is a criminal on the loose. You may be his next victim. He doesn't know you and he doesn't care. But in the end, he will cost you hundreds of dollars.

We are his other victim. He knows us because he bought an insurance policy from us, and he's out for all he can get.

His crime? Insurance Fraud.

When a person commits fraud against Merchants Insurance Group, they rob each and every policyholder of their premium dollars.

Insurance crime costs the industry more than \$17 billion annually, making it the number two crime in America next to tax fraud. What's even more alarming however, is that the problem is getting worse. Over the past few years the number of documented cases of insurance fraud has increased dramatically.

Merchants is committed to stopping these criminals. That's why we have established the Special Investigation Unit, a team of highly trained experts who combat insurance fraud. You can be part of that team by providing any information about people who have committed fraud, or intend to commit fraud against Merchants. Just call the Merchants Insurance Group Fraud Tip-Line at 1-800-401-6695, 24 hours a day.

*Every crime has a victim.
You don't have to be one.*

MMERCHANTS
INSURANCE GROUP

